THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal made under Section 331(1) of the Code of Criminal Procedure Act No. 15 of 1979 read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka

Hon. Attorney General,
Attorney General's Department,
Colombo

Complainant

Court of Appeal Case No: HCC/86-89/2023

High Court of Hambanthota
Case No: HC 418/2006

1. Aranwela Gamage Upul
2. Jayanthi Wasage Susil Jayabandu
3. Sarambage Siril
4. Pathiraja Mudiyanselage Ranjith Prasanna Pathiraja

Accused

AND NOW BETWEEN

1. Aranwela Gamage Upul
2. Jayanthi Waasage Susil Jayabandu
3. Sarambage Siril
4. Pathiraja Mudiyansege Ranjith Prasanna Pathiraja

Accused – Appellants

Vs.

Hon. Attorney General,

Attorney General's Department,

Colombo

Complainant – Respondent

Before: **B. Sasi Mahendran, J.**

Amal Ranaraja, J

Counsel: Shavindra Fernando PC for the 1st and 4th Accused-Appellant

Anil Silva PC with A Ravindra Silva for the 2nd Accused-Appellant

Dishna Warnakula, DSG for the Respondent

Written Submission On: 14.05.2024 (by the 1st and 4th Accused-Appellants)

31.01.2024 (by the 2nd Accused-Appellant)

09.04.2024 (by the 3rd Accused-Appellant)

07.10.2025 (by the Complainant-Respondent)

Argued On: 17.11.2025, 18.12.2025 and 19.12.2025

Judgment On: 10.02.2026

JUDGMENT

B. Sasi Mahendran, J.

The Accused- Appellants (hereinafter referred to as the 1st,2nd,3rd and 4th Appellants) were indicted before the High Court of Hambanthota on the charge of committing the offence of murder of Loku Hennadige Amila Mahesh on 29.06.2005, punishable under Section 296 read with Section 32 of the Penal Code.

At the trial, the prosecution presented evidence through 9 witnesses and marking productions P1-P4 and thereafter closed its case. The Appellants, in their defence, made dock statements.

At the conclusion of the trial, the Learned High Court Judge, by judgment dated 15.02.2023, found Appellants guilty of murder and imposed the death sentence.

Being dissatisfied with both the conviction and the sentence imposed by the Learned High Court Judge, the Appellants preferred an appeal before this Court, articulating the following grounds in support of their challenge.

1st and 4th Appellants' grounds are as follows,

1. The Learned High Court Judge has mistakenly leveled a charge against the four Accused under s.32 of the Penal Code for common intention.

2. I. The Learned High Court Judge has failed to consider the INHERENT INPROBABILITY;

   a) If they went to commit the crime with the murderous intention, would they have officially taken out the weapon making IB entries of such.

   b) Going to the house of the deceased, would they have knocked at the door, identified themselves that they were from the Thissamaharama Police and then enter the house?

3. The Learned High Court judge has failed to consider whether it is right law to sustain a conviction on circumstantial evidence;
   a) Each item of evidence must be implicating the accused of the crime that they are charged with.
   b) There cannot be any reasonable hypothesis that is consistent with the innocence of the accused.

4. The Learned High Court Judge has failed to consider the discrepancies in the evidence of the Prosecution witnesses and has come to a wrong conclusion that the evidence of the Prosecution witnesses supports each other whereas there were several differences and discrepancies in the evidence of the Prosecution Witnesses.

5. The Learned High Court Judge has failed to appreciate the entirety of the evidence led at the trial in the High Court which do not justify the conviction of the Appellant of the offences set out in the charge of the indictment.

6. The Learned Judge of the High Court Judge has failed to appreciate the items of evidence in favour of the Appellants which tend to negative their participation in the incidents which culminate in causing death to the Deceased.

7. The Learned High Court Judge has failed to consider the mitigatory facts and the circumstances under which the Accused -Appellants have committed the alleged offence and has thereby erred in law by falling to give due consideration to the code of Criminal Procedure.

3rd Appellant's grounds are as follows,

1. Whether the presence of a common intention of the Accused - Appellants had been properly evaluated?
2. Whether PW 02 and PW 04 are trustworthy and/or reliable witnesses?
3. Whether the identification of the Accused - Appellants was properly constituted at the trial?
4. Whether the learned High Court Judge has properly evaluated the Dock Statement of the Appellants?
5. The learned High Court Judge failed to evaluate the facts and evidence of the case properly when delivering his judgement.
6. The Learned High Court Judge's Judgment fails to meet the requirements of Section 283(1) of the Criminal Procedure Code

2nd Appellant's grounds are as follows,

1. Has the Prosecution proved the case against the 2n° accused appellant beyond reasonable doubt?
2. Has the matters favourable to the accused not been considered by the Learned Trial Judge and thereby was the 2nd accused appellant deprived of a fair trial.
3. Has the Learned Trial Judge misdirected himself when analyzing the evidence as to whether the 2nd accused appellant had a common murderous intention?

4. Has the Learned Trial Judge not adequately considered whether in all the circumstances of this case that there was clear evidence that this incident occurred as a result of an accident.
5. Has the Learned Trial Judge misdirected himself as regards the tests that should have been followed in the evaluation of the defence evidence?

The facts and circumstances of this are as follows,

PW 02, Benisha Sasipraba Mendis, the wife of the deceased, testified on 28.06.2005, that the deceased, her siblings, and her parents were at home. After dinner, taken at approximately 9:00–9:30 p.m., the deceased and the witness slept in a separate room. Around 12.00 p.m., the witness's father knocked on their door, and when the door was opened, he was accompanied by two unknown Appellants to the witness. Both of them then took the deceased to the front of the house, and the witness testified that the appellants appeared to be intoxicated at the time. After the appellants proceeded to verbally abuse the deceased and the family. The witness, together with her parents, followed behind the deceased. She observed the events from the light cast on the front wall and noted that three other individuals were present near the doorway during the incident.

One appellant who came inside had a gun in his possession, and next, the deceased was taken to the back side of the house from the right side of the front side by the appellants who came to take him inside. Then the father of the witness tried to step to the front side, and the appellants pushed him to the inside of the house. The other three were remaining near the door. After saying "දුවජන්," she heard two gunshots from the back of the house. She further confirmed that the sound did not belong to the deceased. Then both appellants, who had gone to the back, returned to the front, and together with the others instructed them to switch off the lights and close the door. Afterwards, they all left the scene. The witness then fell asleep in the living room. At around 6:00 a.m., the neighbour informed her about the deceased, and she observed that the body was lying down. The witness also admitted that she gave a statement to the police at the hospital.

During cross-examination, the witness confirmed that she had given two separate statements to the Police. The defence highlighted a contradiction, noting that during the inquest, she had stated that both individuals who entered the house were armed with guns. It is pertinent to refer to the entire cross-examination of PW 2, who is the main witness in this matter.

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<u>**හරස් ප්‍රශ්ණ**</u>

ප්‍ර : නමුත් පොලිසියට කට උත්තර කියක් දුන්නාද ?

උ : එකයි.

ප්‍ර : දෙකක් දුන්නේ නැහැ?

උ : ස්පිරිතාලේදී එක කට උත්තරයක් දුන්නා-

ප්‍ර : මාස දෙකකට පස්සේ කට උත්තරයක් ගත්ත ද?

උ : හම්බන්තොටින් ගත්තා.

ප්‍ර : කට උත්තර දෙකක් ගත්තා?

උ : ඔව්.

ප්‍ර : නමුන්ගෙන් ගරු අධිකරනයෙන් විනිශ්චකාර තුමන් ඇහුවා ඒ වේලාවේ කවුහරි අතේ තුවක්කුවක් තිබුණ ද කියලා?

උ : ඔව්.

ප්‍ර : තමුන් දැක්කේ එක් කෙනෙක්ගේ අතේ එක තුවක්කුවක් තිබෙනවා?

උ : ඔව්.

ප්‍ර : බෙනිෂා ශෂිප්‍රභා මෙන්ඩිස් තමුන් සාක්ෂි දුත්තා නේද මරණ පරීක්ෂණයේදී?

උ : ඔව්.

ප්‍ර : ඒ වේලාවේ නමුත් කිව්ව ද දෙන්නෙක් අතේ තුවක්කු තිබුණා කියලා?

උ : ගෙදරට ආපු එක්කෙනෙක් අතේ විතරයි තිබුනේ

ප්‍ර : දෙන්නෙක් අතේ තිබුණා කියලා කිව්ව ද තමුන් ?

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දෙන්නෙක් අතේ තුවක්කු තිබුනා යන කොටස වී -1 වශයෙන් සළකුණුකොට ගරු අධිකරනයට ඉදිරිපත් කරනවා මේ අවස්ථාවේදී.

I note that the following facts were not disputed by the defence during cross-examination:

1. Two unknown people entered the house, one of whom carried a firearm. Later she got to know that one of them was the 1st Apellant.
2. The 1st Appellant and the other Appellant who was armed with the weapon took the deceased to the rear of the house.
3. Subsequently, after saying "දුවපන්," two gunshots were heard.
4. Out of fear, the witnesses did not go outside, and it was the neighbours who later informed them that the deceased dead body had been found at the back of the house.

PW 04, Gayani de Silva, the mother-in-law of the deceased, corroborating the evidence of PW 2, held that on the alleged day, the witness and her husband observed a jeep stopping in front of their house, after which several police officers knocked on the door. The witness and her husband had opened the door. There were five officers present, and the 1st Appellant, whom she got to know about from her husband, inquired about the whereabouts of the deceased. The 1st Appellant, accompanied by another officer, entered the house while the remaining officers stayed outside. The 1st Appellant was armed with a gun. Together, they knocked on the door of the room where PW2 and the deceased were sleeping. When the door was opened, the Appellants took the deceased, stating that there was something to discuss.

The witness further testified that the deceased was being taken towards the front door, and they appeared to be intoxicated and used abusive language. The witness testified that when PW 2 and her husband attempted to step out of the house, the three Appellants prevented them from doing so. The 1st Appellant, together with another officer, then led the deceased towards the back of the house. When the deceased was taken to the rear, those inside heard someone say "දුවමිය," though it was unclear who uttered the words, and it was not the deceased's voice. Shortly thereafter, two gunshots were heard. The Appellants then left the scene. The witnesses did not go to check immediately after hearing the gunshots, as they were afraid. Early the next morning, neighbours informed them about an incident that had taken place in Ranawaka Akka's garden which the house was located 55 feet away. The witness then saw the body of the deceased, and, together with PW2 and her husband, went to the scene. When counsel asked whether the deceased had at any point attempted to escape by jumping out of the window. The witness denied this suggestion.

It should be noted that the PW 04 admitted to being present in the courtroom while PW 2 was giving her testimony. This circumstance raises concerns about the independence and reliability of PW 4's evidence. Consequently, I note that it would not be safe to place reliance on her testimony. It is pertinent to consider the manner in which the witness was cross-examined by the defence.

During cross-examination, the witness acknowledged being present when PW2 testified. She explained that she awoke after hearing the Appellants knocking and, upon realising they were police officers, the door was opened. The defense emphasised a contradiction, noting that in her police statement, she had claimed she only recognised them as police

after the door was opened. The witness clarified that she had also given a statement at the DIG's office, bringing the total to three statements. She further explained that the deceased accompanied the officers willingly, as he had done nothing wrong and made no attempt to flee. Additionally, she testified that one of the officers who entered the house was armed.

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> ප්‍ර : කාගේ අතේද ආයුධ තිබුනේ ?
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> උ :ගෙට ආපු අනිත් කෙනාගෙ අතේ තිබුනා.
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> ප්‍ර : උපුල් එස්.අයි මහත්තයාගෙ අතේ නෙවෙයි අනිත් කෙනාගෙ අතේ තමයි තිබුනේ ?
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> උ : මට මතක හැටියට එහෙමයි

In her police statement, she had not mentioned that the 1st Appellant carried a gun, which the defense marked as an omission. She acknowledged that at the inquest, she initially stated the 1st Appellant had possession of the gun, but later clarified that she could only identify the 1st Appellant and that another officer had the weapon. The witness admitted that the 1st Appellant was known to him, while the others were familiar to him, though he did not know them by name.

I note that the learned High Court Judge, upon evaluating the evidence of PW 2 and PW 4, held that their consistency, and that any contradictions or omissions, did not affect their credibility.

Since I am not relying on the evidence of PW4, and noting that the sole eyewitness is PW2, the issue arises as to whether it is safe to base a conviction solely on the testimony of a single witness.

I am mindful of how our courts have considered such evidence, recognizing the evidence of single eyewitness.

Sumanasena v. Attorney General, 1999 (3) SLR 137, Jayasuriya.J held

> *"In our law of evidence the salutary principle is enunciated that evidence must not be counted, but weighed and the evidence of a single solitary witness if cogent and impressive could be acted upon by a Court of law. Section 134 of the Evidence Ordinance sets out that "no particular number of witnesses shall in any case be required for the proof of any fact'. In an Indian case the conviction for murder was affirmed on the mere circumstantial evidence given by a solitary witness and a*

pointed reference was made to the principle which we have adumbrated above vide Mulluwa v. The State of Maddhya Pradesh. Testimony must always be weighed and not counted and these principles have been followed by Justice G. P. A. De Silva in Walimunige John v. State; King v. N. A, Fernando(. Thus, the Court could have acted on the evidence of the solitary witness Nandasena provided the trial Judge was convinced that he was giving cogent, inspiring and truthful testimony in Court."

In Shivaji Sahebrao Bobade v. Maharashtra 1974 (1) SCR 489, Krishna Iyer,J held that;

"In our view there is only one eyewitness, P.W. 5, Vilas. Even if the case against the accused hangs on the evidence of a single eye-witness it may be enough to sustain the, conviction given sterling testimony of a competent, honest man, although as a rule of prudence courts call for corroboration. It is a platitude to say that witnesses have to be weighed and not counted since quality matters more than quantity in human affairs. We are persuaded that the PW 5 is a witness for truth but in view of the circumstances that he is interested, we would still want corroboration in this case to reassure ourselves. And that we have in this case."

I am convinced of the evidence of the PW 2 consistent and also there is one contradiction was marked which doesn't affect the credibility of the witness.

With regard to the abovce said contradiction I am mindful the openly quoted the judgment of ***Bharwada Bhoginbhai Hirjibhai vs State of Gujarat*** 1983 AIR HC 753;

"… (1) By and large a witness cannot be expected to possess a photographic memory and to recall the details of an incident. It is not as if a video tape is replayed on the mental screen. (2) ordinarily it so happens that a witness is overtaken by events. The witness could not have anticipated the occurrence which so often has an element of surprise. The mental faculties therefore cannot be expected to be attuned to absorb the details. (3) The powers of observation differ from person to person. What one may notice, another may not. An object or movement might emboss its image on one person's mind whereas it might go unnoticed on the part of another. (4) By and large people cannot accurately recall a conversation and reproduce the very words used by them or heard by them. They can only recall the main purport of the conversation. It is unrealistic to expect a witness to be a human tape recorder. (5) In regard to exact time of an incident, or the time duration of an occurrence, usually, people make their estimates by guess work on

the spur of the moment 1.1 at the time of interrogation. And one cannot expect people to make very precise or reliable estimates in such matters. Again, it depends on the time-sense of individuals which varies from person to person…"

We are also mindful that the learned High Court Judge had the opportunity to observe the deportment and demeanor of the witness, and has accordingly concluded that the witness's testimony is consistent.

There is another point of evidence to consider: PW2 stated that five people were present and that she heard two gunshots. The defence sought to emphasize the consistency in her statement. I remain mindful of the observations made in the cited case when assessing this evidence.

State of Uttar Pradesh v. M.K. Anthony, by D. A. Desai J, reported in Supreme Court Journal 1984 (2) page 498,

> *"While appreciating the evidence of a witness, the approach must be whether the evidence of the witness read as a whole appears to have a ring of truth. Once that impression is formed, it is undoubtedly necessary for the court to scrutinize the evidence more particularly keeping in view the deficiencies, draw-backs and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence given by the witness and whether the earlier evaluation of the evidence is shaken as to render it unworthy of belief. Minor discrepancies on trivial matters not touching the core of the case, hyper-technical approach by taking sentences torn out of context here or there from the evidence, attaching importance to some technical error committed by the investigating officer not going to the root of the matter would not ordinarily permit rejection of the evidence as a whole. If the court before whom the witness gives evidence had the opportunity to form the opinion about the general tenor of evidence given by the witness, the appellate court which had not this benefit will have to attach due weight to the appreciation of evidence by the trial court and unless there are reasons weighty and formidable it would not be proper to reject the evidence on the ground of minor variations or infirmities in the matter of trivial details. Even honest and truthful witnesses may differ in some details unrelated*

to the main incident because power of observation, retention and reproduction differ with individuals."

Apart from those contradictions, the witness was consistent on the following matters:

1. The 1st Appellant, along with another, came and asked the deceased to come out and the other Appellant was armed with a weapon.
2. PW 2 stated that she heard the word "දුවපන්" and two gunshots.
3. PW 2 said that, due to fear, she remained inside with other witnesses.

It should be noted that these facts were not disputed by the defence when she was cross examined by their counsel. When the facts are not disputed by the defence, they are treated as proved facts. This dictum was considered in the following judgements.

In ***Edrick de Silva v. Chandradasa de Silva,*** 70 NLR page 169 at 170, Justice H.N.G. Fernando held that,

> *"Where there is ample opportunity to contradict the evidence of a witness but is not impugned or assailed in Cross-examination that is a special fact and feature in the case. It is a matter falling within the definition of the word "Prove" in section 3 of the evidence Ordinance, and a trial Judge or court must necessarily take that fact into consideration in adjudicating the issue before it."*

I hold that, according to PW2, the appellants took the deceased from his home, led him behind, and she then heard "දුවපන්" followed by two gunshots.

The main defence advanced by the Appellants was that, on the alleged day, all four of them went to the deceased's house with the sole intention of arresting him, as there were several complaints against him. They contended that their only purpose was to apprehend the culprit, negating the *mens rea* element of the murder. This version was corroborated by the evidence of PW 9, who conducted the internal inquiry. According to the Appellants, they called out to the residents of the house, revealed their identity, and explained the purpose of their visit. The 4th Appellant stated that he was positioned behind the house with a firearm and saw the deceased jumping out of a window. While chasing the deceased, he fell to the ground after becoming entangled, at which point his firearm discharged automatically. Upon failing to locate the deceased by searching from the torch, they assumed he had successfully escaped. They then advised the deceased's father-in-law to produce him the following morning and returned. He main defence advanced by the

appellants is that they did not take the deceased out of his home, and that the firearm in the possession of the fourth appellant discharged accidentally.

I am mindful that, at the time the appellants left the residence of the deceased, they were aware that the firearm in the possession of the fourth appellant had discharged a bullet. In fact, out of the thirty bullets in that weapon, one was found to be missing. Upon their return to the police, no entry had initially been made. Only after the murder was reported did they record an entry and narrate the story, referring to the misfire. I note that this was considered by the Learned High Court Judge.

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> "පැ.සා.09 වශයෙන් සාක්ෂියට කැඳවා ඇත්තේ මෙම මරණය සිදුවීම සම්බන්ධයෙන් නිලධාරීන් සම්බන්ධව විනය පරීක්ෂණය පැවැත්වූ එවකට හම්බන්තොට පොලිස් අධිකාරීවරයා වශයෙන් සේවය කළ නිලධාරියෙකි. ඔහුගේ සාක්ෂියට අනුව චූදිතයින් මෙම වැටලීම පිළිබඳව සටහන් යොදා ඇත්තේ මරණකරුගේ මරණය පිළිබඳව පැමිණිල්ල ලැබීමෙනුත් අනතුරුවයි. මල්ලිකා රණවක යන අය මරණය සම්බන්ධයෙන් තොරතුර ලබා දී ඇත්තේ 2005.06.29 දින පැය 06.40 ටයි. 01 වන චූදිත මේ සම්බන්ධයෙන් සටහන් යොදා ඇත්තේ එදින පැය 21.30 ටයි. 02 වන චූදිත සටහන් යොදා ඇත්තේ එදිනම පැය 21.45 ටයි. 03 වන චූදිත සටහන් යොදා ඇත්තේ එදිනම පැය 22.55 ටයි. 04 වන චූදිත සටහන් යොදා ඇත්තේ එදිනම පැය 22.10 ටයි. එදින මෙම සිද්ධිය සම්බන්ධයෙන් කිසියම් මහජන කැළඹීමක් ඇති වී තිබූ බවට පැ.සා.05 ගේ සාක්ෂියේ සඳහන් වී ඇත. ඒ අනුව චූදිතයින් පෙර දින රාත්‍රියේදී කළ වැටලීම සම්බන්ධව සටහන් යොදා ඇත්තේ මරණකරුගේ මරණය පිළිබඳව පැමිණිලි ලැබීමෙනුත් මහජන කැළඹීම ඇති වීමෙනුත් පැය ගණනාවකට පසුව බව පැහැදිලිය. තවද මෙම සටහන් ඇතුලත් කර ඇත්තේ පොලිස් ස්ථානාධිපතිවරයා වූ පැ.සා.05 ස්ථානය නිරීක්ෂණය කර චූදිතයින්ගෙන් කරුණු විමසීමෙනුත් පසුවයි. එය පැ.සා.09 ගේ සාක්ෂියේ දී සඳහන් කර ඇත. සටහන් ඇතුළත් කිරීම මේ අනුව සැලසුම් සහගත ලෙස සිදු කර ඇති බව පැහැදිලිය. "

The reason for the delay was not explained by all appellants in their dock statements.

Thee 1st appellant in his dock statement has stated that they had received information about the deceased, who was wanted by the police, and together with the other three Appellants proceeded to the scene. He explained that the 4th Appellant was positioned at the rear of the house with the firearm, while the 2nd and 3rd appellants were placed near the door. They knocked on the door, but no one responded. The 1st appellant then instructed the 2nd appellant, who was known to the residents, to open the door. At that time, they heard the sound of a gunshot from behind the house. The 4th appellant stated that when the deceased attempted to run away, he chased him but fell to the ground,

causing his firearm to discharge automatically. The appellants then searched the area but found nothing. As they returned, the front door was opened and a person appeared. When questioned about the deceased, that person stated that he had run away and promised to produce him to the police the following morning. The appellants then left the scene and returned to the police station.

The 2nd appellant stated that they had gone to arrest the deceased, and that the 1st appellant knocked on the door but received no response. Since the 2nd appellant was known to the residents, he inquired about the deceased. At that time, they heard the sound of a gunshot from the rear of the house. The 2nd appellant, together with the 1st appellant, ran to the back, where the 4th appellant reported that someone had escaped through the window. While chasing that person, the 4th appellant fell to the ground. PW 3 later stated that on the following morning he would bring the deceased to the police.

The 3rd appellant stated that, acting on the advice of the OIC, he, together with the other appellants, went to arrest the deceased. Upon arrival, the 1st appellant positioned the 4th appellant at the rear of the house and, along with the 2nd appellant, engaged with the residents. They heard no response from inside the house, but shortly thereafter a sound was heard from the back. The other three appellants ran towards that direction. When the 1st appellant inquired about what had happened, the 4th appellant explained that a person had escaped through the window and, while chasing him, he had fallen to the ground, causing his firearm to discharge. As they returned to the front, they encountered a person whom the 2nd appellant identified as "Kalu Mahaththaya." The 1st appellant informed him that the deceased was wanted by the police and instructed him to bring the deceased to the police the following morning.

According to the 4th appellant, went to in the effort to arrest the deceased. The appellants arrived at the location armed with a firearm. The 1st appellant positioned the 4th Appellant at the rear of the house with the weapon. Shortly thereafter, the 4th appellant heard the sound of someone jumping from the left-side window. While chasing the individual, he fell to the ground due to the presence of Katuwal plants, at which point his firearm discharged automatically. The 1st and 3rd appellants then came to the rear of the house. When questioned by the 1st appellant, the 4th appellant explained the incident and stated that he had injured his knee. The 1st appellant subsequently searched the area using a torch. Later, upon calling the owner of the house, identified as Kalu, he informed the 1st appellant that he had not been aware of their presence, that the deceased

had fled, and that he would produce the deceased at the police station the following morning. The appellants then returned to the police station and recorded the incident in the information book. The 4th appellant further stated that he had no knowledge of the deceased's death and reiterated that the firearm had discharged automatically when he fell to the ground.

What is the evidentiary value of such dock statements?

This was considered in CA 186/2009 ***Kiribandara Muhandiramlage Rohana Tissa Kumara v. AG*** Decided on 18.10.2011 W.L.Ranjith Silva, J page 133 (Criminal Law-Unreported 2011 Volume 2)

> *"A dock statement must be capable of creating a reasonable doubt and not a fanciful doubt. (CA 89/2001). Even though the Trial Judge failed in his duty to consider the dock statement adequately and impartially, if no credence can be given to the evidence of the Appellant then there is no reason for the appellate court interfere with the conviction. (vide. Dharmadasa v. Director General, Commission to Investigate Briery and Corruption 2003 1 SLR 64). In Misnagollage Siriyawathie v. The State CA 159/95 (HC Avissawella 72/1992) it was held that even if there is a misdirection by the learned trial Judge, in view of the overwhelming evidence placed against the accused by the prosecution, and the correct findings and adjudications reached by the learned trial judge on all the issues in the case, and in the Light of the cogent and overwhelming material against the accused there is no reason for the Appellate Court to interfere with the findings of the learned High Court Judge. It was held by the Court Simongs Ekanayake v. The Attorney General. CA 129/2005 (HC Anuradhapura 142/2002) that where the trial judge has the dock, nor miscarriage of justice would take place due to the lapse of the Trial Judge if there is material to say that the dock statement is palpably false, then the findings of the trial court should not be overturned."*

In the case of ***Queen Vs. Kularatne*** (1968) 71 NLR 529, it was held that while jurors must be informed that such a statement must be looked upon as evidence subjected however, to the infirmities that the accused's statement is not made under oath and not subjected to cross-examination.

Held further;

1. If the dock statement is believed, it must be acted upon to.
2. If it raised a reasonable doubt in their minds about the case of the prosecution,

the defence must succeed. and;

3. It must not be used against another accused.

The **case** ***Sarath v. Attorney General 2006*** **(3) SLR 96** too had shed light on the issue of how a dock- statement must be evaluated, wherein, it had been held that;

'one must bear in mind that when a dock statement is considered anywhere in the judgment, the judge who heard the evidence is aware of the prosecution case and would always consider the dock statement while considering the prosecution story.

One cannot consider the dock statement is isolation. How can one accept or reject the dock statement without knowing the other side of the story.?"

I note that the learned High Court Judge has rejected the dock statements, having considered the evidence of PW 7 who is JMO.

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"කෙසේ වෙතත් 04 වන චූදිත අතෙහි තිබූ T 56 ගිනි අවිය ඔහු වැටීමෙන් හදිසියේ පත්තු වී ජනේලයෙන් පැන ගිය මරණකරුගේ හිසට වෙඩි උණ්ඩය එල්ල වීම කිසිසේත් පිළිගත නොහැකිය. අධිකරණ වෛද්‍ය නිලධාරිවරයාගේ වාර්තාව හා සාක්ෂි අනුව සිරුර මැද සිට අඟල් 1 1/2 ක් දකුණටත්, සිරුර පිටුපස දකුණු පස සිට අඟල් 04 ක් පහළටත්, දකුණු උරහිස කෙළවරේ සිට මැදට අඟල් 6 1/2 ක් දුරින් හිස් කබලේ සිට අඟල් 4ක් පහළින් ඇතුළු වූ වෙඩි උණ්ඩය පිට වී ඇත්තේ මුහුණේ දකුණු පැත්තේ යටි තොලත් හණුවත් අතරින්ය. දකුණු පැත්තේ යටි තොලත් හණුවත් අතර ප්‍රදේශයේ කුහරයක් ආකාරයට වෙඩි උණ්ඩය පිට වූ තුවාලය තිබී ඇත. ඔහුගේ සාක්ෂියේදී වැඩිදුරටත් සඳහන් කර ඇත්තේ මෙසේය.

" ප්‍ර: දොස්තර මහත්තයාට කියන්න පුළුවන්ද මේ තැනැත්තාගේ ඇතුළු වීමේ සහ පිට වී මේ තුවාලය මොන වගේ රේඛාවකද පිහිටා තියෙන්නේ කියලා?

උ : තිරස් රේඛාවකට සමාන්තරව පිහිටා තියෙනවා."

තුවාලය එසේ සිදුවීමට හේතුව ඔහු සඳහන් කර ඇත්තේ මෙසේය.

"ප්‍ර ; කිසියම් කෙනෙක් වෙඩි තබන ලද අවස්ථාවේදී වෙඩි තැබීමට පාවිච්චි කරන තුවක්කුව අල්ලාගෙන ඉන්න ඕන කොයි විදියටද කියලා ගරු අධිකරණයට කියන්න පුළුවන්ද?

උ : තිරස් රේඛාවක් ඔස්සේ අල්ලාගෙන ඉන්න ඕන."

මෙම සාක්ෂිය අනුව ගිනි අවිය අතේ තිබූ තැනැත්තා හදිසියේ වැටීමකදී පිට වන උණ්ඩයක් හරියටම තිරස් රේඛාවක් ඔස්සේ ගමන් කළ නොහැකිය. මරණකරුගේ සිරුර පිටුපසින් ඇතුළු වූ වෙඩි උණ්ඩය

සහ පිටවීමේ තුවාලය තිරස් රේඛාවක ගමන් කර ඇත. ඒ අනුව තුවාලයේ ස්වභාවය අනුව වෙඩි උණ්ඩය ගමන් කළ යුත්තේ තිරස් රේඛාවක් ඔස්සේ බවට අධිකරණ වෛද්‍ය නිලධාරීවරයාගේ සාක්ෂියේ සඳහන් ය. එම සාක්ෂිය මෙසේය.

"ප්‍ර : ඒ අනුව දොස්තර මහත්තයාට වෙඩි උණ්ඩය වැදීම සම්බන්ධයෙන් යම් මතයක් ප්‍රකාශ කරන්න පුළුවන්ද?

උ : තිරස් රේඛාවක වෙඩි උණ්ඩය එන්න ඕන. "

ඒ අනුව තුවාලයේ ස්වභාවය අනුව අවිය හා මරණකරුගේ දුර සම්බන්ධයෙන්ද අධිකරණ වෛද්‍ය නිලධාරීවරයා මතයක් ඉදිරිපත් කර ඇත. ඒ අනුව ඔහු සඳහන් කර ඇත්තේ මෙසේය.

> "ප්‍ර: මේ තැනැත්තාගේ ඇතුළු වීමේ තුවාලයේ දක්නට ලැබෙන නිරීක්ෂණ අනුව කොච්චර විතර දුරක ඉඳලා මේ වෙඩි තැබීම සිද්ධ වෙන්න ඕන කියලා කියන්න පුළුවන්ද?
>
> උ : නිශ්චිත වශයෙන් ප්‍රකාශ කරන්න බැහැ. මඳ දුරක්, ඉතාමත් ආසන්න නොවන බව ප්‍රකාශ කරන්න පුළුවන්. මඳ දුරකින් සිට වෙඩි තැබීම සිදු විය හැකියි කියන්න පුළුවන්."

මේ අනුව වෙඩි තැබූ ස්ථානයත්, මරණකරුත් අතර දුර ප්‍රමාණය දිගු දුරක් නොවන අතර වෙඩි තැබූ තුවක්කුව තිරස් අතට අල්ලා ගැනීමෙන් නිකුත් කරනු ලැබූ වෙඩි උණ්ඩයක් බව විශේෂඥ සාක්ෂිකරුගේ සාක්ෂියෙන් තහවුරු කර ඇත.

අධිකරණ වෛද්‍ය නිලධාරියාගේ ඉහත කී සාක්ෂි වලට අනුව තුවක්කුව දරණ තැනැත්තා වැටීමකදී හදිසියේ පිට වූ උණ්ඩයකින් සිදු වූ තුවාලයක් විය නොහැකිය. එම තුවාල වල ස්වභාවය විත්ති වාචිකය කිසිසේත් පිළිගත නොහැකිය.

This opinion of the JMO directly cut across the fourth appellant's version that the firearm misfired accidentally. I am also mindful that the defence did not propose to challenge or contradict the evidence presented by the JMO. Further, I observe that the body was found in the neighbourhood. The 1st appellant stated that, after being informed by the 4th appellant about the misfire, he went in search of the body with a torch but claimed he could not locate it. There remains a doubt as to whether he in fact undertook such a search.

Considering the evidence of PW 2 together with the testimony of the JMO that the bullet had travelled in a horizontal line from close range, and noting also the failure to record entries at the relevant time, the learned High Court Judge has correctly concluded that the defence evidence did not cast any doubt upon the prosecution's case.

I have already indicated that the Learned High Court Judge has duly considered the evidence of PW 2. I find no reason to interfere with the said decision of the Learned High Court Judge.

Now I consider the evidence of PW 5.

In the case of ***Pantis Vs. The Attorney General*** (1998) 2 SLR 148, Wijeraratne J., held that;

> *"As the burden of proof is always on the prosecution to prove its case beyond reasonable doubt and no such duty is cast on the accused and it is sufficient for the accused to give an explanation which satisfies the Court or at least is sufficient to create a reasonable doubt as to his guilt."*

In the case of ***Narender Kumar Vs. State of Delhi*** **(NCT of Delhi, AIR 2012 SC 2281)**, it was held: (this case was referred by Justice Sampath B. Abayakoon, J. in Latheef Ihusan and another v. AG, CA/HCC/0088/2022, 29-04-2024)

> *"Prosecution case has to stand on its own legs and cannot take support from the weakness of the case of the defence. However great the suspicion against the accused and however strong the morel belief and conviction of the Court, unless the offence of the accused is established beyond reasonable doubt on the basis of legal evidence and material on the record, he cannot be convicted for the offence. There is an initial presumption of innocence of the accused and the prosecution has to bring home the offence against the accused by reliable evidence. The accused is entitled to the benefit of every reasonable doubt."*

According to PW 05, IP Brabath Deshabandu, who worked in the same police station as the OIC with the Appellants stated that the neighbor of the deceased, Shriyani Mallika, informed the police that on 29.06.2005 at around 6:40 a.m., there was a dead body in the garden. Thereafter, the witness, accompanied by seven officers, proceeded to the scene. He described the area as open, with some Maduwal plants. The body was lying face downwards, bearing a gunshot wound to the neck, and blood was scattered in the surrounding area. The witness stated that PW 2 identified the deceased and stated that the police had previously knocked on the door asking for him, at which time the deceased had jumped out of the window and fled. The witness further noted that the window had no grills, and on the other side there were pieces of wood scattered. He opined that the scattering of the wood might have occurred when someone stepped on it.

According to the information gathered from the appellants, the witness learned that the 1st appellant had positioned the 4th appellant at the rear of the house in case the deceased attempted to escape. Based on the appellants' statements, the witness further understood

what transpired when the deceased was running away. It was revealed that the appellants had introduced themselves as officers of the Thissamaharama Police and instructed the deceased to come out, stating that he was wanted by the police in connection with several cases. They also informed him about a gunshot. At the time, the appellants were in possession of a T56 firearm and 30 bullets.

The witness stated that he became aware of the actions of the appellants and, from his observations, noted the location of the deceased's body, the place where the 4th appellant had fallen, and the direction in which the deceased had fled. He testified that when the 4th appellant chased the deceased after he had jumped from the window, the appellant called out for him to stop. However, the 4th appellant fell to the ground due to the presence of Maduwal plants. The witness explained that he learned these details from the 1st and 4th appellants. He further confirmed that he was able to identify all four appellants. According to their account, when the 4th appellant fell, the firearm he had prepared was automatically discharged. The weapon was taken into custody by the witness from the 4th appellant. Subsequently, a riotous situation arose in the area. The witness further stated that the appellants surrendered the T56 rifle, which at that time contained only 29 bullets. He also testified that both the ASP and the SSP conducted an inquiry regarding this matter.

During cross-examination, the witness asserted that there had been many complaints against the deceased. The witness stated that PW 2 had mentioned the deceased attempted to escape through the window, and that PW 4 had confirmed this statement.

From the evidence, PW 2 stated that the deceased escaped through the window. This stands in contrast to the testimony of PW 2, who elsewhere maintained that the deceased was taken away by the Appellants.

It should be noted that the evidence of PW 2, who stated that the deceased escaped through the window, was duly considered by the learned High Court Judge. I am mindful that when PW 2 gave her testimony, her evidence was not contradicted. Her evidence has not been impeached by the defence under Section 145 (1) or 155 of the Evidence Ordinance. Generally, the defence seeks to highlight contradictions between earlier statements and the testimony given in court. This concept was considered in **The Law of Evidence, Volume II, Book 2, E.R.S.R. Comaraswamy,** at page 754:

(iv) Section 145 and Section 155 (c) should be read together

section 145 and Section 155 (c) deal with different aspects of the same matter and should be read together. The following points of distinction may be noted:

(a) *Section 155 (c) permits the credit of a witness to be impeached by proof of former statements that are inconsistent with any part of his evidence, which may be contradicted. But it lays down no procedure for purpose. That procedure is laid in Section 145.*

(b) *Section 155 (c), therefore, presupposes the existence and binding effect od Section 145, and is in a sense controlled by the provisions of Section 145.*

According to PW 5, PW 2 had stated that the deceased ran away through the window when they arrived early in the morning at about 6.40 a.m. In contrast, PW 2 stated that she gave evidence in the evening at the DIG's office, which was duly recorded. The question that arises is whether the first statement, in which PW 2 said that the deceased ran away, was in fact recorded. According to Section 110 (1) of the Criminal Procedure Code, when a police officer conducts an investigation, any statement made by a person disclosing relevant facts must be in writing. It is pertinent to refer to section 110(1) of the Criminal Procedure Code,

> *"110.(1) Any police officer or inquirer making an investigation under this Chapter may examine orally any person supposed to be acquainted with the facts and circumstances of the case, and shall reduce into writing any statement made by the person so examined, but any oath or affirmation shall not be administered to any such person. The whole of such statement shall be recorded in full in the manner set out in section 109 (2). If the police officer or inquirer asks any question in clarification such question and the answer given thereto shall be recorded in form of question and the answer. Such record shall be shown or read to such person or if he does not understand the language in which it is written, it shall be interpreted to him in a language he understands and he shall be at liberty to explain or add to his statement. The person making the statement shall then sign that statement immediately at the place where the statement inconcluded. The police officer or inquirer recording the statement shall append below each statement recorded by him the following certificate:-*
>
> *"I……hereby declare that I have faithfully and accurately recorded the statement of the above named……"*

In fact, this witness stated that he had taken the relevant books known as අපරාධ පරීක්ෂණ පොත්. When I analyse the evidence recorded at the trial, much of what he revealed indicates that he had seen the appellants' statements, which were recorded at a later stage. Although we do not have the right to peruse the information book, it can be concluded from his evidence that he did not record the statements at the time of the investigation. If he has recodeded the particular statement would have been produced to the courts under section 110(3) of the Criminal Code,

> ***(3)*** *A statement made by any person to a police officer in the course of any investigation may be used in accordance with the provisions of the Evidence Ordinance except for the purpose of corroborating the testimony of such person in court:*
>
> *Provided that a statement made by an accused person in the course of any investigation shall only be used to prove that he made a different statement at a different time.*
>
> *Anything in this subsection shall not be deemed to apply to any statement falling within the provisions of section 27 of the Evidence Ordinance or to prevent any statement made by a person in the course of any investigation being used as evidence in a charge under section 180 of the Penal Code."*

The reason for my conclusion is that, during PW 2's evidence, the defence has not suggested the deceased had run away through the window. Even to the PW 4 this was not suggested. On the other hand, PW 5 simply said that PW 2 told to him that the deceased had run away from the window. As I mentioned earlier since they were all working together in the same police station, I hold that PW 5 is an interested witness, notwithstanding that he was summoned by the prosecution. I note that his testimony has not shaken the evidence of PW 2 and PW 4, as defence could not impeach them.

The question before us is whether all four accused shared a common intention to murder the deceased. As there are no eyewitnesses to identify who actually fired off the fatal shot, I note that the case rests entirely upon circumstantial evidence. It is incumbent upon the prosecution to establish, beyond a reasonable doubt, that the Appellants shared the common murderous intention to commit the offence.

I note that all 4 Appellants were charged for murder under Section 32 of the Penal Code. Section 32 reads as follows,

32. When a Criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.

The prosecution must establish that the Appellants were actively involved by proving their participation, presence, prior arrangement, and murderous intent in order to demonstrate a shared common intention. The following cases give guidance on how Section 32 should be applied. The applicable principles for common intention are clearly laid down
in ***Raju and Others v Attorney General*** (2003) 3 Sri L.R. 116 at page 119, where Edirisuriya J held that,

"it seems to me that the learned trial judge has failed to refer to the required mental element i.e. the murderous intention to constitute the offence of murder

In the case of King v Assappu 50 N.L.R. 324 Dias, J. sitting with Nagalingam, J. and Gratiaen, J. held that in a case where the question of common intention arises the Jury must be directed that –

i. *The case of each accused must be considered separately.*
ii. *The accused must have been actuated by a common intention with the doer of the act at the time the offence was committed.*
iii. *Common intention must not be confused with same or similar intention entertained independently of each other.*
iv. *There must be evidence either direct or circumstantial of pre-arrangement or some other evidence of common intention.*
v. *The mere fact of the presence of the accused at the time of the offence is not necessarily evidence of common intention.*

Justice Sirimanne in the case of ***Punchi Banda v The Queen*** *74 N.L.R.494 refers to the legal principle laid down in King v Assappu (supra) that a common murderous intention must be shared before a person can be convicted of murder on an application of section 32 of the Penal Code"*

In the case of ***Somarathne v. The Attorney General***, 1986 (1) SLR 217 at page 221, Moonemalle, J held that;

> *'it is necessary for the prosecution to prove two essential ingredients, namely, a sharing of a common intention by the accused and participation of the accused in the commission of those offences. It was necessary for the trial Judge to apply the rule of common intention to the facts of the case. Where the evidence before the trial Judge was circumstantial, then it was his duty to pay heed to the principle that the inference of common intention should not be reached unless it is a necessary inference, an only inference, an inference from which there is no escape. The learned trial Judge has been silent on all these important factors relating to the rule of common intention. He should have considered them along with the evidence in the case which he should have carefully analysed before coming to any finding on the question whether the 2nd accused acted in furtherance of a common intention with the other accused to commit the offences of house breaking and theft'*
>
> *This judgement is considered in Athige Don Preeman Melat Silva v The Attorney General CA/HCC/ 192/2018, decided on 20.06.2022.*

It is tried law that common intention can be drawn from the evidence if it could be shown that if it was the only possible irresistible inference that could have form in the instant case. It is established that the Appellants had made an outgoing entry with the intention of arresting the deceased. The 4th appellant admitted that he had accidentally discharged his firearm. Also, I note that all 4 Appellants denied having arrested the deceased. There is no evidence to suggest that they had any pre-plan to commit murder. Consequently, the prosecution bears the burden of proving that all appellants shared a common intention to kill the deceased through their actions.

According to the above judgements, the common murderous intention must be shared by all accused for conviction of a murder on an application of Section 32 of the Penal Code. What is the circumstantial evidence placed against the Appellants?

1. By their own entries in the Information Book and dock statements, the appellants admitted all four went to the deceased's residence
2. PW 4 testified she identified the 1st Appellant
3. PW 2 stated that the 1st Appellant, with another who had a gun, took the deceased out of the house (PW 4 also admitted the fact that he had a gun)

4. The utterance "දුවපන්" was not contradicted by the Appellants.
5. The other two Appellants prevented witnesses from leaving the house, and they were verbally abusing them.
6. After "දුවපන්," PW 2 heard two gunshots.
7. Preventing witnesses from leaving the house shows participation of the other two appellants in the offence.
8. The 4th appellant possessed the firearm, and his claim of no intention was contradicted by JMO's evidence (fatal injury at close range).
9. 1st appellant claimed he searched for the body, but it was found near the house.
10. All four appellants knew the gun was fired, but concealed it until a complaint was made.
11. All four left the scene together and failed to report the matter to superiors.
12. Several hours later, they made an entry claiming the incident was an accident and there is no explaination by them as the reason for the delay.

Is it not sufficient to prove beyond reasonable doubt that they shared the common intention? It should be noted that, under Section 32 of the Penal Code, a person can only be convicted of murder if a common murderous intention is shared among the participants. His Lordship Justice Kodagoda observed that if there is no evidence of any prior arrangement, still common intention can be proved by the proving the conduct of Appellant at the time of the incident and the subsequent conduct. From this evidence the prosecution can establish that they all shared the common murderous intention to commit that offence.

This was considered in ***Sri Lanka Henayalage Somadasa v. Attorney General***, SC Appeal No: 130/2014, Decided on 25.11.2024, Yasantha Kodagoda, PC, J held that;

> *"**Conduct of the Appellant at the time of the incident** – Chathurangani being the sole witness with regard to the commission of the offence has testified that at the time of the attack on Neelawathi and Nishadini, the 2nd Accused (Appellant) merely stood near the Andara Weta (a reference to the hedge at the perimeter of the compound). As pointed out by learned counsel for the Appellant, given the possible distance between the location of the house and the place where the Appellant was standing, it cannot even be reasonably concluded that the Appellant was immediately 'present' at the scene of the crime. Furthermore, there is no evidence of the 2nd Accused being armed or having made any violent utterance. In*

my view, this evidence coupled with the previous conduct of the 2nd Accused in no way justifies a reasonable inference that the Appellant entertained a common murderous intention along with the 1st and 3rd Accused or that the Appellant's own conduct was actuated by a common intention between the three Accused.

Appellant's subsequent conduct *- I must advert to and comment upon another key submission made by learned Senior ASG. His argument was that the Appellant having fled away from Delana (possibly along with the 1st and 3rd Accused) on the night of the incident, not resided at his house for quite some time, absconded and having subsequently surrendered, supports the inference that he (the Appellant) shared a common murderous intention together with the other two Accused.*

First, one needs to consider the relevancy of these items of evidence. It is common and quite popular in our criminal justice system to treat such evidence as 'subsequent conduct influenced by the fact in issue' and therefore deemed 'relevant' under section 8(2) of the Evidence Ordinance. At first sight, it is quite so. However, given the other evidence of this case, one needs to carefully consider whether such subsequent conduct was in fact 'influenced by the facts in issue' (the complicity of the Appellant in the commission of the crime) or was influenced by the fact that other peasants of this township of Delana had assumed that all three Accused had participated in the dastardly murder of Neelawathi, and therefore that night caused mischief by setting fire to the houses of all three Accused. Given a degree of vigilantism which at times prevail in our society in instances where there is considerable public disquiet as a reaction towards the commission of serious crimes, where segments of the community acting illegally assume the role of the police (law enforcement) and the courts (judiciary), and apprehend and summarily punish alleged perpetrators and proceed even to the extent of causing mischief to their property, had the Appellant remained in the village of Delana, in all probability he would have been harmed alongside damage being caused to his house. Therefore, as explained in his testimony, the Appellant having initially returned to Delana from Kuliyapitiya and thereafter fled the area, lay in hiding and later surrendered, in my view is quite understandable. Such conduct on the part of the Appellant cannot in my view be necessarily attributed to his complicity in the crimes committed by the 1st and 3rd Accused.

However, I must hasten to record that, I do not find anything contrary to law in the learned trial judge having permitted such evidence relating to 'subsequent

conduct' being led by the prosecution. The error arose when such evidence was analysed, weighed and the learned Judge arrived at the conclusion that the Appellant entertained a common intention together with the 1st and 3rd Accused in committing the murder of Neelawathi.

It is necessary to recall that in ***The King vs. Jan Singho*** *[41 NLR 573], Justice Moseley sitting in the Court of Criminal Appeal has expressed the view that, the Appellants (a) having been seen in company with the principal perpetrator at the time of or immediately after the incident, (b) that they were seen running away from the scene of the incident, and (c) that they subsequently were not to be found at their respective homes, were insufficient to arrive at an irresistible inference that a common intention existed between the Appellants and the principal perpetrator. In fact, Justice Moseley has proceeded to express the view that (with which I find myself in respectful agreement) if the Appellant's actions are capable of innocent explanation, even though such explanation is not given, the benefit of such explanation should accrue to the Appellant. In contrast, in this case, the Appellant has in fact offered the explanation for his subsequent conduct."*

In the instant case, there is evidence to show that when the 1st and the other appellant took the deceased and while the others stopped the witnesses from intervening. Thereafter, all went together, and following the incident they failed to make notes, later claiming it was an accident a position rejected by PW 7. I am also mindful that their subsequent conduct in not entering notes detracts from any claim of innocence. I am further mindful that the learned High Court Judge has correctly concluded the evidence of the prosecution. Although he did not specifically refer to the evidence of PW 5, this omission does not create any doubt in the prosecution's version that the appellants took the deceased and shot him.

I am mindful that the learned High Court Judge correctly concluded that the Appellants version did not create any doubt in the prosecution's case. The burden of proof that the appellants murdered Loku Hennadige Amila Mahesh was discharged by the prosecution beyond reasonable doubt. The learned High Court Judge analysed the evidence comprehensively and without compartmentalisation.

In those circumstances, I am not inclined to interfere with the judgment delivered by the learned High Court Judge dated 15.02.2023 together with the sentencing order.

Accordingly, the appeal is dismissed.

JUDGE OF THE COURT OF APPEAL

Amal Ranaraja, J.

I AGREE

JUDGE OF THE COURT OF APPEAL